

run when the patient is aware of physical manifestations of her injury without regard to awareness of the negligent cause.” (*Hills v. Aronsohn* (1984) 152 Cal.App.3d 753, 762.) Therefore, the demurer should be sustained based on the three-year limitations period.

However, the statute provides that the time for commencing the action is tolled upon “(1) proof of fraud, (2) intentional concealment, or (3) the presence of a foreign body that has no therapeutic or diagnostic purpose or effect in the person of the injured individual.” (Code Civ. Proc., § 340.5.) The Complaint did not sufficiently address the basis for any applicable tolling. Therefore, leave is granted for Plaintiff to amend his Complaint to allege any additional facts which may establish tolling.

Plaintiff to file an amended pleading within 20 days, unless the court orders otherwise. (Cal. Rules of Court, rule 3.1320(g).).

4.

CASE #	CASE NAME	HEARING NAME
CVRI2603302	WALSH vs LE VECKE CORPORATION	MOTION TO APPEAR AS COUNSEL PRO HAC VICE AS TO LE VECKE CORPORATION

Tentative Ruling:

The Pro Hac Vice application of Phillip A. Ciano for plaintiff Ian Walsh is approved.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2603302	WALSH vs LE VECKE CORPORATION	MOTION TO APPEAR AS COUNSEL PRO HAC VICE AS TO LE VECKE CORPORATION

Tentative Ruling:

The Pro Hac Vice application of Oliver L. Herthneck for plaintiff Ian Walsh is approved